Condition reports

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What is a condition report?

A condition report is a record of a property's condition at the start of a rental agreement. Rental agreements include those for:

- rooming houses
- caravan parks
- caravans
- Part 4A sites.

Anything that is unclean, damaged or not working should be in the condition report. The report should include the property, room or caravan and:

- its fittings and fixtures
- everything inside and outside.

All rental properties, rooming houses, caravans, caravan sites, and Part 4A park sites must have condition reports.

Note: on this page, the terms:

- ‘rental provider' (landlord) includes rooming house operators, caravan park owners, caravan owners and Part 4A site owners
- ‘renter’ includes rooming house residents, park residents and site tenants.

The rental provider, or their agent, prepares the condition report. They must sign it and give 2 copies to the renter (or one copy if sending electronically) before they move in.

Why is the condition report important?

Condition reports can be important evidence if there’s a dispute about bond claims (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-claims-and-refunds), or who should pay for cleaning or fixing damage.

Condition reports at the start of the agreement

The rental provider is responsible for providing 2 copies of the signed condition report (or 1 electronic copy) to the renter before they move in. The report must be created using the Condition report template (Word, 187KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/condition-report-word.docx). It can be given to the renter on paper or electronically, such as by email.

The renter should check the report and, if anything is not accurate, they can change it and add their own comments. The renter should send a signed copy to the rental provider or agent and keep one for themselves. They must return the report within 5 business days (i.e. not including weekends and public holidays) of moving into the property. Allow enough time for delivery if sending it by post.

If a renter is not given a condition report before they move in, they can complete their own. They should give the condition report to the rental provider or their agent within 5 business days of moving in.

It is a good idea for both the renter and the rental provider to take photos of the property at the start of the rental agreement. This is particularly important if there is any pre-existing damage to the property.

Date and label photos and attach them to the condition report. Photos can be either hard copies or digital ones.

A condition report that notes something needing repair gives the rental provider written notice of the issue. If the repairs are not done within a reasonable period of time, the renter can apply to VCAT for an order requiring the repairs to be done.

The rental provider (or their agent) and the renter must keep a copy of the condition report until the end of the rental agreement (lease).

Report an issue with an advertised rental property

Prospective renters, real estate agents or members of the public with concerns about an advertised rental property can report an issue with an advertised rental property (https://www.consumer.vic.gov.au/housing/renting/starting-and-changing-rental-agreements/applying-signing-and-moving-in/applying-for-a-property/report-an-issue-with-an-advertised-rental-property) to us.

Disputes about the condition report

It is best to try to work together to sort out any disagreements about the condition report. However, if the renter or rental provider thinks that the condition report is wrong or incomplete, either can apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies) to make a decision. They must do this within 30 days of the start of the rental agreement.

Condition reports at the end of the agreement

When a rental agreement ends, the rental provider or agent must complete the 'Exit condition report' section of the original condition report within 10 days. The renter must be present when this happens, or have been given a reasonable opportunity to be there. Reasonable means what most people would think is fair.

The exit condition report records the condition of the property at the end of the tenancy.

Claiming the bond using the condition report

A rental provider or agent may be able to use the condition report to claim part or all of the bond at the end of a rental agreement if:

- there is new damage to the property, room or hired caravan or site that isn't normal wear and tear
- the property needs new repairs
- the property needs further cleaning
- items are missing.

If there is a dispute about the bond, either the renter or rental provider can apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies). This process is free if the claim is for an amount which is less than the bond paid.

Read more information about claiming the bond (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-claims-and-refunds).

Condition of the property and repairs

There are minimum standards for the condition of rental properties (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/minimum-standards/minimum-standards-for-rental-properties) and rooming houses (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/minimum-standards/rooming-house-minimum-standards).

There are also rules around:

- repairs and urgent repairs in rental properties and rooming houses (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-in-rental-properties)
- who is responsible for managing pests and mould (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/pests-infestations-and-mould)
- renters installing fixtures and making changes to the property (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/renters-making-changes-to-the-property).

Cleaning responsibilities

Renters and residents must keep the property in a reasonably clean condition.

When moving out, renters and residents must leave the property:

- reasonably clean
- in the same condition as when they moved in taking into account fair wear and tear.

If you sign a rental agreement from 29 March 2021, there are extra requirements for professional cleaning. Rental providers cannot ask renters to get professional cleaning unless the property:

- needs to be returned to the state it was in at the start of the rental agreement (allowing for fair wear and tear). For example, if it was professionally cleaned before the renter moved in.
- is in a state that requires professional cleaning.

You can read more about cleaning in Guideline 2 - Cleanliness (Word, 244 KB) (https://www.consumer.vic.gov.au/library/publications/housing-and-accommodation/renting/guideline-2--cleanliness.docx).

Forms you might need

To create a condition report, use this template:

- Condition report template (Word, 187KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/condition-report-word.docx)

Sections of the Act

Condition reports are covered by these sections of the Residential Tenancies Act 1997 (https://www.legislation.vic.gov.au/in-force/acts/residential-tenancies-act-1997):

- Section 35
- Section 97
- Section 148
- Section 206O.

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(https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people)

We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.

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